Decree of the General Administration of Customs of the People's Republic of China No.237

03/12/2018

The Measures for Enterprise Credit Management by the Customs Administration of the People's Republic of China, which was adopted at the executive meeting of the General Administration of Customs on January 29, 2018, is hereby promulgated, and shall come into effect as of May 1, 2018.

Yu Guangzhou
Minister
General Administration of Customs
March 3, 2018

Measures for Enterprise Credit Management by the Customs Administration of the People's Republic of China

Chapter I General Provisions

Article 1

The *Measures* is formulated in accordance with *the Customs Law of the People's Republic of China, Regulations on Customs Audit of the People's Republic of China, Interim Regulations on Public Disclosure of Enterprise Information* and other related laws and administrative regulations for the purposes of pressing ahead the development of social credit system, establishing import and export credit management of enterprises and promoting trade security and facilitation.

Article 2

The *Measures* shall apply to the collection and public disclosure of the credit information of enterprises registered and filed with the Customs and that of relevant personnel of enterprises, as well as the determination and management of enterprise credit status.

Article 3

The Customs will, in light of the credit status, accredit the enterprises as certified enterprise, general-credit enterprise and discredited enterprise. Certified enterprises are further classified into advanced certified enterprise and general certified enterprise.

The Customs will, pursuant to the principle of facilitations for enterprises that act in good faith and in compliance with laws and sanctions for those that lose credit and violate laws, apply corresponding controls to the aforesaid enterprises.

Article 4

Collaborating with other state departments, the Customs implements joint incentives for the trustworthy enterprises and joint sanctions upon the discredited enterprises, and furthers mutual exchange of information, mutual recognition of supervision and mutual assistance in law enforcement (hereafter referred to as the "3M") in light of the requirements on the establishment of social credit system.

Article 5

Certified enterprises are Authorized Economic Operators (AEO) recognized by China Customs. China Customs carries out mutual recognition of AEOs with the Customs administrations of other countries or regions in accordance with international treaties, laws and this *Measures*, and grant corresponding benefits to mutually recognized AEOs.

China Customs will enhance the 3M cooperation among customs authorities based on the need for international cooperation.

Chapter II Collection and Public Announcement of Credit Information

Article 6

The Customs administration may collect the following information that can reflect the credit status of an enterprise:

1. Registration or recordation of the enterprise and basic information of relevant personnel affiliated with the enterprise;
2. Import and export activities
3. Administrative license;
4. Administrative and criminal penalties of the enterprise and relevant personnel;
5. Joint incentives and sanctions taken by the Customs Administration and other state departments concerned;
6. AEO mutual recognition;
7. Other information that reflects the credit status of an enterprise.

Article 7

The Customs Administration establishes the credit information management system of enterprises and carry out control based on credit. The enterprises concerned shall, from January 1 to June 30, submit the *Annual Credit Report* to the Customs Administration through the system.

Enterprises registered or filed with the Customs Administration in the current year shall submit the *Annual Credit Report* from the second year.

Article 8

In any of the following circumstances, the enterprise is grouped into the directory of enterprises with abnormal credit information:

1. Failing to submit the *Annual Credit Report* to the Customs Administration as required;
2. Unable to locate the residence or business site as registered with the Customs Administration after a site visit, and failed to reach the enterprise by using the contact information registered with the Customs Administration.

The credit level of the enterprise shall not be upgraded when it is listed in the directory of enterprises with abnormal credit information.

When the first circumstance indicated in the first paragraph of Article 8 is no longer exists, the Customs Administration shall remove the enterprise out of the directory of enterprises with abnormal credit information.

Article 9

Without prejudice to the protection of state secret, trade secret and personal privacy, the Customs Administration shall publicly disclose the following credit information of an enterprise:

1. Registration or recordation with Customs Administration;
2. The result of Customs Administration determination on the credit status;
3. Administrative licenses;
4. Administrative penalties;
5. Joint incentives and joint sanctions taken by the Customs Administration and other state departments concerned;
6. Directory of enterprises with abnormal credit information determined by the Customs Administration
7. Other information that should be disclosed in accordance with laws.

The term of public disclosure of information regarding administrative sanctions against the enterprise is five years.

The Customs Administration shall publish the method of searching for the credit information described above.

Article 10

Where deeming that the credit information publicized by the Customs Administration is inaccurate, a natural person, legal person or unincorporated organization may raise objections to the Customs Administration with supporting materials or evidence.

The Customs Administration shall review the information within twenty (20) days of receipt of the objection application, and shall accept the objection if the justifications proposed by the natural person, legal person or unincorporated organization are tenable.

Chapter III Criteria and Procedures of Determination of an Enterprise's Credit Status

Article 11

A certified enterprise shall be in compliance with the *Criteria of Certified Enterprises of the Customs Administration developed by the General Administration of China Customs*.

The *Criteria of Certified Enterprises of the Customs Administration* comprises of criteria for advanced certified enterprises and criteria for general certified enterprises.

Article 12

In any of the following circumstances, an enterprise shall be determined as discredited:

1. Committing the crime of smuggling or conducting an act of smuggling;

2. For enterprises other than Customs brokers, the number of violation against Customs regulatory provisions within one year exceeding 0.1% of the total number of the declarations, entry-exit filing lists, and manifests of the inbound and outbound conveyance of the previous year, and administrative sanctions amounted to more than RMB 1 million(1,000,000) accumulatively.

For Customs brokers, the number of violation against customs regulatory provisions within one year exceeding 0.05% of the total number of the declaration forms and entry-exit filing lists and manifests of the inbound and outbound conveyance of the previous year, and administrative sanctions amounted to more than RMB 300 thousand(300,000) accumulatively.

3. In arrears with payable taxes and/or fines and confiscated illegal gains due;

4. Meeting the second circumstance indicated in the first paragraph of Article 8 and listed in the directory of enterprises with abnormal credit information for more than ninty (90) days;

5. Fraudulently using the name of the Customs Administration or other enterprises
to seek illegal profit;

6. Concealing facts from the Customs Administration and providing false information which exerts negative impact on enterprise credit management;

7. Resisting and hindering the law enforcement of the Customs officers with severe consequences;

8. Being included in the national list of discredited enterprises subject to joint sanctions due to criminal offence;

9. Other circumstances provided by the General Administration of Customs;

When the accumulative amount of administrative penalties against enterprises other than customs brokers, customs brokers recorded and registered with the Customs Administration in the current year exceeds RMB 1 million(1,000,000) and RMB300 thousand (300,000) respectively within one year due to the violation of Customs regulatory provisions, they are regarded as the discredited by the Customs Administration.

Article 13

In any of the following circumstances, an enterprise shall be determined as general-credit by the Customs Administration:

1. Registration or recordation with the Customs Administration for the first time;

2. Failing to meet the *Criteria of Certified Enterprises of the Customs Administration* as a certified enterprise, but no circumstances indicated in Article 12 occurred; or

3. No circumstances set out in Article 12 occurred over the past 2 consecutive years since the day when the enterprise determined as discredited by the Customs Administration.

Article 14

In application for the status of a certified enterprise, the enterprise shall submit the *Application Form of Certified Enterprises* to the Customs Administration. The Customs Administration shall authorize the enterprise pursuant to the *Criteria of Certified Enterprises of the Customs Administration*.

Article 15

The Customs Administration shall determine whether the credit status of the enterprise under certification meets the *Criteria of Certified Enterprises of the Customs Administration*. within ninety (90) days of receipt of the *Application Form of Certified Enterprises*. The term of customs certification can be extended for thirty(30) days under special circumstances.

Article 16

The Customs Administration grants the *Certificate for Certified Enterprise* to the enterprise passing customs certification. The *Decision Letter of Disapproval for Certified Enterprises Management* is issued to the enterprise that fails in the certification. Both the *Certificate for Certified Enterprise* and *Decision Letter of Disapproval for Certified Enterprises Management* shall be delivered to the applicants and shall come into force on the date of delivery.

The enterprise withdrawing the applications on its own initiative is regarded as failure in certification.

The enterprise tfailing to pass the certification is not allowed to apply for a new certification to the Customs Administration within one year.

Article 17

During the process of application and certification, the Customs Administration shall terminate the certification if the enterprise is detected or investigated due to being suspected of smuggling. The Customs Administration may also terminate the certification If the enterprise is suspected of breaching Customs regulatory provisions.

During the process of application and certification, if the enterprises are audited or inspected by the Customs Administration, the Customs Administration may suspend the certification. The Customs Administration shall terminate the certification if the suspension exceeds three months.

Article 18

The Customs Administration shall re-authorize the advanced certified enterprises every three (3) years and re-authorize the general certified enterprises on an irregular basis.

The Customs Administration shall inform the enterprises concerned before the re-certification and follow the certification procedure. Where it fails in the re-certification, the enterprise shall be issued the *Decision Letters of Disapproval for Certified Enterprises Management* and its credit status shall be adjusted. The *Decision Letters of Disapproval for Certified Enterprises Management* shall be delivered to the applicants and shall come into force on the date of delivery.

During the re-certification process, if the enterprise applies to abandon the certification, it is deemed as failure in certification.

Article 19

A certified enterprise that has been downgraded to the general-credit status by the Customs Administration shall not apply for the certified status within one year. A certified enterprise that has been downgraded to the discredited status by the Customs Administration shall not apply for the certified status within two years.

An advanced certified enterprise that has been downgraded to the general-certified status by the Customs Administration shall not apply for the advanced certified status within one year.

Article 20

Provided that the enterprise does not fall in any of the circumstances set out in Article 12 from the date of being certified as a discredited enterprise over the past two consecutive years, the Customs Administration shall upgrade the status of the enterprise from discredited to general-credit.

A discredited enterprise that has been upgraded to the general-credit status for one full year may apply for the certified status to the Customs Administration.

Article 21

Where the spin-offs or merger happens to an enterprise, the Customs Administration shall make corresponding adjustments to the certification result of enterprise credit status pursuant to the following principles:

1. In the case of split-off of an enterprise, where the survived enterprise succeeds the major rights and obligations of the predecessor enterprise, the result of credit status of the predecessor enterprise determined by the Customs Administration and the corresponding management measures shall apply to the survived enterprise, and other divided enterprises shall be deemed as enterprises registered or recorded with the Customs Administration for the first time;
2. In the case of split-up of an enterprise, the divided enterprises shall be deemed as enterprises registered or recorded for the first time;
3. In the case of merger, the certification result of credit status of the survived enterprise determined by the Customs Administration shall apply to the merged enterprise; and
4. In the case of consolidation, the consolidated enterprise shall be deemed as an enterprise registered or recorded for the first time.

Article 22

The Customs Administration or the applicant enterprise may commission social intermediaries to issue professional conclusions regarding related issues of the certification.

Chapter IV Management Measures

Article 23

The following management measures shall apply to general certified enterprises:

1. The average inspection rate for import and export goods 50% lower than that of the general-credit enterprises;
2. Priority in processing import and export clearance formalities; and
3. The amount of customs deposit lower than the total amount of payable taxes or that prescribed by the General Administration of Customs
4. Other management measures provided by the General Administration of Customs.

Article 24

In addition to the benefits applicable to general certified enterprises, the following management measures shall also apply to advanced certified enterprises:

1. The average inspection rate for import and export goods 20% lower than that of the general-credit enterprises;
2. Application for the exemption of guarantee;
3. Reduced frequency of auditing and inspection;
4. Declaration made to Customs prior to the arrival of export cargos in the Customs supervision area;
5. Coordinators designated by the Customs Administration;
6. Benefits offered by the Customs Administrations of the countries or regions with the mutual recognition of AEOs;
7. Joint incentives provided by other relevant state departments;
8. Priority for customs clearance after the resumption of international trade interrupted by force majeure;
9. Other management measures provided by the General Administration of Customs.

Article 25

The following management measures shall apply to the discredited enterprises:

1. Over 80% of the average inspection rate of import and export goods;
2. No exemption of the costs of lifting, moving and storage caused by the Customs inspection in any circumstance;
3. Inapplicable to the rule of consolidated payment of taxes;
4. Not subject to the release upon the retaintion of samples or images of import and export cargos except for special circumstances described otherwise;
5. Full amount of deposit of guarantee for processing trade;
6. Increased frequency of audit and review;
7. Joint sanctions implemented by related state departments;
8. Other management measures provided by the General Administration of Customs.

Article 26

The management measures applicable to advanced certified enterprises shall be superior to those applicable to general certified enterprises.

Where there is a conflict in the applicable management measures due to the different results of determination on the credit status, the Customs Administration shall apply the management measures pursuant to inferior principles.

Article 27

Where a certified enterprise is detected or investigated due to being suspected of smuggling, the Customs Administration shall suspend the applicability of corresponding management measures. Where a certified enterprise, being suspected of violating customs regulatory provisions, is thus investigated, the Customs Administration shall suspend the applicability of corresponding management measures. The enterprises falling into the above circumstances shall be treated as general-credit enterprises.

Article 28

The Customs Administration shall suspend the applicability of corresponding management measures if the credit level of enterprises is downgraded, and apply management measures in the light of the adjusted credit level.

Chapter V Supplementary Provisions

Article 29

The crime of smuggling, as a reference of determining the credit status of an enterprise, shall be ascertained on the basis of the effective date of the legal instruments of judicial agencies.

The acts of smuggling and violations of customs regulatory provisions on which the determination of credit status of an enterprise is based shall be ascertained on the basis of the date on which the administrative sanction decision is rendered by the Customs Administration.

The acts of voluntary discloure by an enterprise and the resulting warnings or fines under RMB 50 thousand (50,000) by the Customs Administration shall not be deemed as a record in determining its credit status.

Article 30

The meanings of the following terms in the Measures:

"Related personnel of the enterprise" refers to the administrative staff of the enterprise, including legal representative, principal responsible person, chief financial person, and person in charge of customs affairs,

"Amount of administrative sanctions" refers to the sum of penalties imposed by the Customs Administration and the amount of illegal gains and/or the value of the goods and articles confiscated by the Customs Administration due to violations of customs regulatory provisions.

"In arrears with taxes payable" refers to the failure to pay, over three months upon the due date, the sum of payable tariffs and other taxes levied by the Customs Administration on other agencies' behalf for import and export goods and articles during importation and exportation, including the taxes payable in addition to the penalties imposed by the Customs Administration upon determination of a violation of the customs regulatory provisions.

"In arrears with penalties and/or confiscated illegal gains due" refers to the failure to pay the penalties imposed by and illegal gains confiscated by and the amount equivalent to the value of the smuggled goods and articles pursued by the Customs Administration, over six months upon the expiry date set out in the administrative sanction decision of the Customs Administration.

"Day" refers to a natural day.

"One year" refers to twelve consecutive months.

"Year" refers to a calendar year.

"Above" and "below" shall include the given figure.

"Authorized Economic Operator" (AEO) is an enterprise involved in the international movement of goods in whatever function, conforming to the conditions set out herein and the Criteria of Certified Enterprises of the Customs Administration, and certified by the Customs Administration.

Article 31

The General Administration of Customs shall be responsible for the interpretation to the Measures.

Article 32

The Measures shall come into effect on May 1, 2018.

The Interim Measures of the General Administration of Customs of the People's Republic of China on Enterprise Credit Management promulgated in the form of *Decree No. 225 of the General Administration of Customs* on October 8th, 2014 shall be abolished simultaneously.

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